

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE SALAHUDDIN PANHWAR
MR. JUSTICE ISHTIAQ IBRAHIM

J.Ps No.448 & 557 of 2023 and Criminal Petition No.1080-L of 2023
(Against the judgment dated 25.09.2023, passed by the Lahore High Court,
Lahore in Criminal Appeal No.41189 of 2019 and Murder Reference No.170 of
2019)

Zulfiqar Ali alias Pappu
(in JP No.448/2023)
Rab Nawaz
(in JP No.557/2023)

Muhammad Bashir
(in CrI.P. No.1080-L/2023)

...Petitioner(s)

VERSUS

The State and another
(in JPs No.448 & 557 of 2023)

Zulfiqar Ali etc
(in CrI.P. No.1080-L/2023)

...Respondent(s)

For the Petitioner(s): Mr. Naveed Ahmed Khawaja, ASC
(in JPs No.448 & 557 of 2023)

Mr. Shahid Azeem, ASC
(in CrI.P. No.1080-L/2023)

For the State: Mr. Hamayun Aslam, DPG, Punjab
(in all cases)

Date of hearing: 11.02.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.-Petitioners Zulfiqar Ali alias Pappu and Rab Nawaz along with co-accused Iftikhar, Sajjad, Abdul Razzaq, Shoukat Ali and Mst. Zohran Bibi charged for committing murder of Muhammad Ashraf and Muhammad Sarwar deceased, were tried by the Additional Sessions Judge, Okara (‘Trial Court’), in a private complaint instituted by Muhammad Bashir complainant (PW.1),

under sections 302, 148 and 149 of the Pakistan Penal Code, 1860 ('PPC'), when he felt dissatisfied with the investigation in case FIR No.566 dated 06.12.2013, registered under sections 302,148 and 149 PPC, at Police Station Gogera, District Okara. Upon conclusion of trial, the Trial Court vide judgment dated 13.06.2019, convicted petitioner Zulfiqar Ali alias Pappu and Rab Nawaz under section 302(b) PPC and sentenced the former to death as Ta'azir and the latter to imprisonment for life as Ta'azir on two counts and to pay Rs.1,00,000/- each to legal heirs of each deceased and in default thereof to further undergo six months simple imprisonment on each count. Benefit of Section 382-B of the Code was extended to petitioner Rab Nawaz. Co-accused Shaukat Ali was also convicted and sentenced, however, Iftikhar, Sajjad, Abdul Razaaq and Mst.Zohran Bibi were acquitted through the same judgment.

2. The Lahore High Court ("High Court"), vide judgment dated 25.09.2023 ('impugned judgment'), dismissed Criminal Appeal No. 41189 of 2019 and maintained the conviction of the petitioners-convicts under Section 302(b) PPC. However, the sentence of petitioner Zulfiqar Ali alias Pappu was commuted from death to imprisonment for life on two counts, and Murder Reference No. 170 of 2019 was answered in the negative. Co-convict Shaukat Ali, who had filed a separate appeal, was acquitted on the basis of compromise. No appeal was preferred by the State or the complainant against the acquittal of the said co-accused.

3. Through Jail Petitions No. 448 and 557 of 2023, the petitioners-convicts have assailed their convictions and sentences before this Court. Conversely, Muhammad Bashir, complainant, has filed Criminal Petition No. 1080 of 2023 seeking enhancement of the sentence of the convicts-respondents from life imprisonment to death as provided under Section 302 PPC.

4. The prosecution's case as per complaint filed by complainant Muhammad Bashir (PW.1) is that on 06.12.2013 at about 02.00 p.m. complainant along with his brothers Muhmmad Ashraf, Muhammad Afzal, paternal uncle, Muhammad Sarwar and cousin

Muhammad Nazir was sitting outside his house situated in Kot Fazal Mauza Akbar when in the meantime, petitioners-convicts Zulfiqar alias Pappu, armed with 12 bore pump action gun and Raba Nawaz, armed with 30 bore pistol accompanied by Shoukat Ali, armed with 12 bore rifle Sajjad armed with 30 bore pistol, Abdul Razaaq and Iftikhar (acquitted co-accused) came there on two motorcycles. After deboarding from the motorcycles, petitioners Zulfiqar Ali alias Pappu, Shoukat Ali and Rab Nawaz opened fire at Muhammad Sarwar, Muhammad Ashraf as a result, both got hit on different parts of their bodies and died on the spot. After the occurrence the accused while leaving their motorcycle at the spot made their escape good. The occurrence was witnessed by complainant and Muhammad Nazir. Motive behind the occurrence was that Mst. Rasoolan Bibi (sister-in-law (Sali) of petitioner Zulfiqar and Rab Nawaz) was married to Ijaz who had deserted the house of her husband for the last 4/5 years. The deceased Muhammad Ashraf and Muhammad Sarwar were forcing her for reconciliation and rehabilitation with her husband Ijaz on which the accused were not agreed and due to this grudge, they committed murder of the deceased.

5. We have heard the learned counsel for the parties as well as the learned Deputy Prosecutor General, Punjab, appearing on behalf of the State, and have perused the record, the evidence and the judgments rendered by the courts below with their able assistance.

6. A perusal of the record reveals that two persons, namely, Muhammad Sarwar and Muhammad Ashraf (both deceased), lost their lives in the occurrence as a result of firearm injuries. The present petitioners-convicts, Zulfiqar Ali alias Pappu and Rab Nawaz, along with co-accused Shoukat Ali, were attributed the role of firing at the two deceased. However, upon a careful scrutiny of the ocular account furnished by Muhammad Bashir (PW-1), the informant of the FIR, and Nazir Ahmad (PW-2), it transpires that the role of making effective fire shots with 12-bore pump-action rifles upon Muhammad Sarwar deceased was specifically assigned to petitioner-convict Zulfiqar Ali alias Pappu and co-accused Shoukat

Ali (*since acquitted on the basis of compromise*). As a consequence of the said firing, Muhammad Sarwar deceased sustained firearm injuries on his thigh below the left buttock and on the right flank and succumbed to the injuries at the spot. The testimony of Dr. Ozair Tahir (CW.8), who conducted postmortem examination of Muhammad Sarwar deceased, fully supports the ocular account to the extent of the unnatural death of deceased Muhammad Sarwar. It is important to note that no role of firing or effective firing upon Muhammad Sarwar deceased was attributed to petitioner-convict Rab Nawaz by the eyewitnesses.

7. As regards Muhammad Ashraf deceased, the eyewitnesses attributed the role of effective fire shots on his person to petitioner-convict Zulfiqar Ali alias Pappu with a 12-bore pump-action rifle with which he got hit on his left arm, front shoulder, left ear and head. Similarly, the fire shot attributed to co-accused Shoukat Ali with a 12-bore pump-action gun, caused injury to Muhammad Ashraf deceased on his back. Although a role of a single effective fire shot with a .30-bore pistol at Muhammad Ashraf deceased was assigned to petitioner-convict Rab Nawaz, allegedly hitting the deceased on his left flank, however, the medical evidence does not corroborate the ocular account to the extent of the role of petitioner-convict Rab Nawaz. Dr. Umair Qamar Usmani (PW-3), who conducted the post-mortem examination of Muhammad Ashraf deceased, deposed that the cause of death of deceased Muhammad Ashraf was excessive haemorrhage and irreversible damage to his vital organs, namely the brain and left lung, resulting from injuries No.1 and 3. The said injuries were specifically attributed by the eyewitnesses to petitioner-convict Zulfiqar Ali alias Pappu and co-accused Shoukat Ali (*since acquitted*). Although the Medical Officer noticed a lacerated wound measuring 1 cm × 0.5 cm on the left side of the front of the chest, 5 cm below the left nipple, but the said injury had no exit wound. Similarly, no bullet was recovered from the dead body; rather, three pellets were recovered from the left pleural cavity during post-mortem examination of the deceased by the Medical Officer. The prosecution has failed to produce any

cogent evidence to establish that injury No.5 was the result of a fire shot from a .30-bore pistol. The said injury was not opined to be the cause of death of the deceased by the doctor. Though a .30-bore pistol was allegedly shown recovered on the pointation of petitioner-convict Rab Nawaz, but the same has rightly been held inconsequential by the learned High Court, as the report of the Punjab Forensic Science Agency (PFSA), Lahore (Exh.PN), merely indicates that the pistol was in working condition. There is no forensic report establishing any matching of the said pistol with any crime empty.

8. The ocular account, to the extent of the role attributed to petitioner-convict Zulfiqar Ali alias Pappu, is straightforward, confidence-inspiring and finds strong corroboration from the medical evidence. However, to the extent of the role attributed to petitioner-convict Rab Nawaz, the same is contradicted by the medical evidence.

9. Upon reappraisal of the evidence and applying the well-settled principle of sifting the grain from the chaff, we are of the considered view that the prosecution has succeeded in establishing the guilt of petitioner-convict Zulfiqar Ali alias Pappu through reliable and confidence-inspiring ocular testimony duly supported by medical evidence. However, regarding petitioner-convict Rab Nawaz, the prosecution evidence is shaky, deficient and insufficient to prove his guilt beyond reasonable doubt. It is a settled proposition of law that benefit of doubt, howsoever slight, must accrue in favour of the accused.

10. Accordingly, Jail Petition No.448 of 2013, filed by petitioner-convict Zulfiqar alias Pappu is dismissed and leave to appeal is refused. Jail Petition No.557 of 2023 filed by petitioner-convict Rab Nawaz, is converted into an appeal and allowed. His conviction and sentence recorded by the courts below are set aside and he is acquitted of the charge. He shall be released forthwith, if not required in any other case.

Criminal Petition No.1080-L of 2023

12. The learned High Court, while taking into consideration the non-proof of motive and treating the recovery of the alleged 12-bore rifle as inconsequential, has rightly regarded the same as mitigating circumstances and commuted the sentence of death awarded to respondent-convict Zulfiqar Ali alias Pappu to imprisonment for life. The findings of the learned High Court are in consonance with the settled principles laid down by this Court that non-proof of motive and inconsequential recovery constitute mitigating circumstances warranting commutation of a death sentence to imprisonment for life. We do not find any compelling reason or legal infirmity justifying enhancement of the sentence. Accordingly, the petition to this extent is dismissed on merits and leave to appeal is refused.

12. In view of the acquittal of respondent Rab Nawaz, the instant petition, to that extent, has become infructuous and is dismissed as such.

Judge

Judge

Judge

Announced in open Court at Islamabad on _____

Judge

Islamabad

Not Approved for Reporting

M.Siraj Afridi PS